

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING SECTIONS 1.4.3, 1.4.4, AND 5.7.2 OF THE UNIFIED DEVELOPMENT CODE TO AMEND SPECIFIC USES ALLOWED AS HOME OCCUPATIONS AND ADD CLARIFYING DEFINITIONS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the Unified Development Code of the City of Cheyenne (UDC).

Section 2. That on April 21, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 of the UDC is amended to add the following definitions and read as shown in Exhibit A, which is attached hereto and incorporated herein.

Massage Therapy. A medical service that emphasizes the therapeutic benefits of massage, aiming to address specific health concerns and practiced by a person who holds a massage therapist permit pursuant to chapter 5.52, title 5, of the city code.

Section 4. That Section 1.4.4.e of the UDC is amended as follows and to read as shown in Exhibit A, which is attached hereto and incorporated herein.

Automobile ~~Service~~ Repair. A Commercial use engaged in the repair, maintenance, ~~or~~ condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Section 5. That Section 5.7.2 of the UDC is hereby amended to read:

5.7.2 Home Occupations

In districts where home occupations are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. Home occupations include, but are not limited to, arts and crafts-making, tailoring or seamstress services, one or two person professional offices (medical, insurance, law, etc.), music instruction and wholesale/catalogue sales.
- b. Home occupations are intended to allow limited business activity from the home but shall not alter the character of the neighborhood.

- c. Additional off-street parking may be required for the home occupation business if more than three clients per day are expected to visit the business or if vehicles associated with the business are stored at the place of the home occupation. No additional parking spaces shall be provided in the front yard setback (or within the side yard setback if the property is a corner lot). Where needed additional parking would alter the character of the neighborhood the home occupation shall be prohibited.
- d. There shall be no offensive noise, vibration, smoke, dust, odors, heat or glare noticeable at or beyond the property line.
- e. No exterior storage of materials or equipment is permitted. No storage of motorized vehicles or trailers associated with the business may be in the public right-of-way.
- f. Signage will be limited to one non-illuminated sign not more than three square feet in area per home.
- g. No retail sales are permitted from the site other than incidental sales related to services provided.
- h. Not more than one employee or co-worker other than the permanent resident(s) can work from on the site.
- i. An “in-home” business operating from a residential dwelling within shall be registered in the home occupation data base, administered through the City Planning and Development Department and all applicable registration fees shall be paid.
- j. Specific Exclusions. The following businesses shall not be allowed as home occupations:
 - 1. ~~Auto body or mechanical repair, to include any modification, assembly or painting of motor vehicles and repair of internal combustion engines;~~ Automobile Service Repair, however automobile detailing and/or cleaning shall be allowed as a home occupation with the following additional restrictions:
 - (a) No more than three customers per day.
 - (b) No more than one customer vehicle parked at the property at a time.
 - (c) Vehicles that are being serviced must be parked on the property and cannot be parked in the street at any time.
 - 2. ~~Massage parlors; technicians;~~
 - 3. ~~Beauty parlors;~~ salons, nail salons and barber shops if employing anyone other than the permanent residents of the property;
 - 4. ~~Animal grooming salons and boarding kennels~~ if employing anyone other than the permanent residents of the property;
 - 4. Boarding kennels;
 - 5. Body piercing/body art/tattoo art if employing anyone other than the permanent residents of the property;
 - 6. Massage Therapy if employing anyone other than the permanent residents of the property.
- k. Specific Allowances.
 - 1. Mobile Service Providers Permitted at Client Residences. Certain businesses that involve providing services at a client’s home are permitted to operate at the client’s residence and are not subject to home occupation regulations at that location provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include house-call veterinarians, mobile massage therapists, mobile pet groomers, and similar providers.

2. Office-Only Use for Off-Site Businesses. A business that is not typically permitted to operate as a home occupation may be allowed if the home is used exclusively for office-related functions and no clients, customers, employees, or business activities take place at the home provided they meet all other regulations of this section and applicable local, state, and federal laws. Examples include administrative work, scheduling, bookkeeping, or storage of vehicles or materials related to businesses that operate off site like food trucks, lawn care businesses, snow removal services, etc.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle